



ARE YOU GETTING WHAT YOU BARGAINED FOR?

*A CLOSER LOOK AT
INEXPENSIVE STAM*

*REVIEWED BY RABBI YOSEF Y. SHUSTERMAN
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AS SHLUCHIM, WE ENCOURAGE BAALEI BATIM TO PURCHASE MEZUZOS FOR THEIR HOMES, AS WELL AS TEFFLIN, AND OFTEN DIRECT THEM TO LOW-COST STAM SO THEY WON'T BE DISSUADED BY THE EXPENSE. UNFORTUNATELY, MANY OF THE LOW-COST MEZUZOS AND TEFFLIN BEING SOLD TODAY (I.E., MIVTZOYIM STAM) DO NOT EVEN MEET THE MOST BASIC HALACHIC STANDARDS OF KASHRUS. IT'S NOT JUST THAT THEY'RE NOT MEHUDAR—THEY ARE OFTEN NOT KOSHER AT ALL. THOUGH YOU MAY ALREADY BE AWARE OF THIS SAD REALITY, THIS ARTICLE WILL ARM YOU WITH THE BACKGROUND KNOWLEDGE NECESSARY TO BE ABLE TO DISCERN WHETHER THE STAM YOU OR YOUR BAALEI BATIM ARE BEING SOLD IS LIKELY TO BE KOSHER, AS WELL AS PROVIDE FACTS AND ANALOGIES THAT MAY BE HELPFUL TO YOU WHEN TRYING TO CONVINCE A BAAL HABOS TO INVEST IN MORE EXPENSIVE STAM.

In 5734, the year the Rebbe launched Mivtza Mezuzah, the Rebbe explained that he encouraged people to frequently check their mezuzos and tefillin because:

...” מהאט בפירוש מודיע געווען, אז מווייסט פון ערטער וואס פארקויפן מזוזות מזויפות! און זיי מאכן גוטע געשעפטען! און דאס איז סײַ אין חרל סײַ אין אדק, און די זעלבע זאך בנוגע צו תפילין...”²

“[W]e have specifically announced that we know of places that sell counterfeit mezuzos! And they make good business! This is both in chutz la’aretz and in Eretz Yisrael. The same is true with regard to tefillin....”

While the Rebbe was discussing actual counterfeit, the problem is really very nuanced, with many sub-par mezuzos being sold to unsuspecting buyers as lechatchila kosher. In order to understand how these mezuzos enter the supply chain, let us take a step back and look at how the Stam market works.

2 שיחות קודש תשל״ד חב״ ע 378 (משיחת כ׳ מנח תשל״ד)



THE

From yeshiva dropouts who learned safrus from a friend or picked it up on their own, to women with artistic flair looking to make a quick buck, there are all types of people writing Stam. However, in order for Stam to be kosher, the person writing it must be thoroughly familiar with all the relevant halochos. The Chasam Sofer, however, says that knowledge is not enough. The person must be tested by rabbonim and awarded a ksav kabolo before being permitted to write Stam. A sofer without kabolo, the Chasam Sofer says, is “possul may’umnoso” and not allowed to write Stam. This psak is universally accepted.

There are thousands of halochos, many of which are not detectable in the final product.

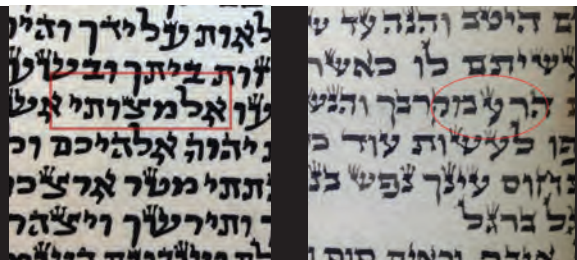
”...ובפרט בדור פרוץ הלזה, שבעונותינו הרבים האמונה נתרופפה, והסופרים רבו כארבה. ובעיר אחת ידענו לדאבון לבבינו למאות סופרים, ורובם אינם יראי שמים כלל. ומשם פשתה המספחת בכל ערי מדינתנו, מזלזלים במקח מאוד, ולוקחים ללמוד נערים ריקים שאין בהם לחלוחית יראת שמים, ומוכרים תפילין ומזוזות בעד מטבעות קטנות, מפני שכותבים כמה בכל יום. ובבירור שאינם מקדשים שמות, ומעשיהם חול ולא קודש. ואין בידינו במה לפוסלם, כי הוא דבר המסור ללב. וכל מי שנגע יראת ה' בלבו – לא יקנה תפילין ומזוזות רק מסופר ידוע שהוא ירא שמים, וכן בכתובת ספר תורה.”

ערוך השולחן סימן רפא סעיף ט

IT'S THE THOUGHT THAT COUNTS... OR IS IT?

AN INDIVIDUAL ONCE WROTE TO THE REBBE ABOUT A DIFFICULTY HE AND HIS FAMILY WERE EXPERIENCING AND THE REBBE ADVISED THAT THEY CHECK THEIR MEZUZOS. THE MEZUZOS WERE CHECKED AND FOUND TO BE KOSHER, BUT THE REBBE INSTRUCTED THAT THE MATTER SHOULD BE LOOKED INTO FURTHER. AFTER SOME SLEUTHING, IT WAS DISCOVERED THAT WHEN THE SOFER HAD WRITTEN THE MEZUZOS, HE HAD LEFT OUT ALL OF THE SHEIMOS AND FILLED THEM IN LATER. HIS INTENTIONS HAD BEEN PURE – HE HAD WANTED TO GO TO THE MIKVA BEFORE WRITING THE SHEIMOS – BUT HE WASN'T AWARE OF THE HALOCHA THAT A MEZUZA CANNOT BE WRITTEN OUT OF ORDER. THE RESULT WAS MEZUZOS THAT LOOKED PERFECTLY FINE BUT WERE ANYTHING BUT KOSHER.

For example, if the sofer doesn't have the proper kavanah when writing the sheimos, the mezuzah is possul. When looking at a mezuzah, however, there is no way to know whether the sofer indeed did so. In previous generations, the sofer in town was a yorei Shomayim with kabolo who was well known by his customers. He was generally hired to write a handful of mezuzos or a set of parshiyos for tefillin at a time, a task he took great care to accomplish with due diligence. Once completed, the sofer checked his work and corrected any errors that may inadvertently have crept in. Today's global market works quite differently.



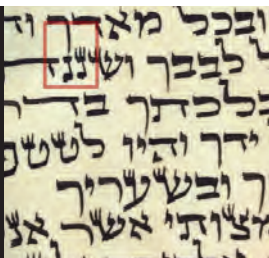
Most Stam being sold in stores today is mass-produced in Eretz Yisroel. Sofrim are hired by vendors and wholesalers who, in turn, send the work to magi'im to check, after which it is sold to stores around the world. As with any other market, the vendors and wholesalers seek to produce their Stam at the lowest cost with the highest profit margin. This is especially so with regard to the market in highest demand: the cheapest product.

As such, unfortunately, an overwhelming majority of the so-called sofrim being hired to write low-end mezuzos or tefillin are not certified by reputable rabonim and many are not people we would consider to be yirei Shomayim. They are people who can work quickly and are willing to work for cheap. They don't know the halochos and may lack sensitivity with regard to the critical importance of having kavana while writing the sheimos. Even if they do possess this sensitivity, without kabolo they are not permitted to write Stam and their safrus is not allowed to be sold. Though a mezuzah may look beautiful, if its writer does not know the halochos, it is very possibly halachically invalid.

Besides for employing sofrim who do not have kabolo and can therefore be paid less than those who do, vendors – especially wholesalers – employ various other methods to cut costs. One of the areas where corners are cut is with

THE DOLLARS & CENTS

AS A “KOSHER LECHATCHILA” MEZUZA WRITTEN BY A TRAINED CERTIFIED SOFER TAKES AT LEAST AN HOUR-AND-A-HALF TO WRITE AND CHECK, THE BASE PRICE FOR LABOR ALONE IS ALREADY CLOSE TO \$30 (USD). ADD IN THE MATERIALS (SUCH AS \$2-3 FOR KLAUF, \$1 FOR COMPUTER CHECKING, \$1 FOR MEZUZA CASE, PACKAGING, ETC.) AND VENDOR PROFIT AND YOU’LL FIND THAT THE STARTING COST FOR THE MOST BASIC KOSHER MEZUZA SHOULD BE ABOVE \$40. IF A MEZUZA IS OFFERED FOR LESS THAN THAT, THERE IS ROOM TO SUSPECT THAT THE SOFER ISN'T CERTIFIED AND THAT THE MEZUZA WENT THROUGH A HASTY NON-METICULOUS CHECKING BEFORE REACHING YOU. GREAT CARE SHOULD BE TAKEN TO ENSURE ITS KASHRUS BEFORE BUYING IT. THE FACT THAT IT’S BEING SOLD—EVEN BY A FRUM VENDOR—DOESN’T MEAN IT’S KOSHER.



MOST SOFRIM WHO WRITE CHEAP MEZUZOS ARE NOT CERTIFIED. A NORMALLY WRITTEN “KOSHER LECHATCHILA” MEZUZA TAKES TWO HOURS TO WRITE—1.5 HOURS IF DONE QUICKLY. THERE ARE SOME SOFRIM WHO ARE ABLE TO WRITE A MEZUZA IN AN HOUR BUT MOST WHO DO AREN'T CERTIFIED AND THE MEZUZA DOESN'T COME OUT CLEAN FROM SHAILOS. THE YIRAS SHOMAYIM OF THE SOFER IS ALSO QUESTIONABLE. IT IS VERY RARE TO FIND A GOOD “KOSHER LECHATCHILA” MEZUZA WRITTEN THIS QUICKLY. FOR THIS REASON, MOST CHEAP MEZUZOS UNDER \$35-\$40 ARE NOT AT A LECHATCHILA STANDARD. UNFORTUNATELY, MOST “MIVTZOIM” MEZUZOS ON THE MARKET ARE BEING WRITTEN IN UNDER AN HOUR BY NON-CERTIFIED SOFRIM AND ARE NOT AT EVEN AT A BASIC LECHATCHILA STANDARD OF WRITING (AND EVEN THE MAGIA CANNOT TURN THEM INTO LECHATCHILA KOSHER).

the tagim. While a mezuzah is kosher bedieved in some cases if certain tagim are missing, no rov would be matir lechatchila to sell mezuzos without them; the security offered by the mezuzah is compromised when the kashrus is compromised. However, since tagim take time to write and speed is a very important factor in keeping costs low, many manufacturers will hire so-called sofrim to quickly write mezuzos and tefillin without tagim and then hire someone else to fill the tagim in later. It is a completely unregulated process, so if the person writing the tagim gets distracted and misses a tag or simply stops in the middle of a mezuzah for whatever reason, the result is a mezuzah without the necessary tagim, which is halachically questionable.

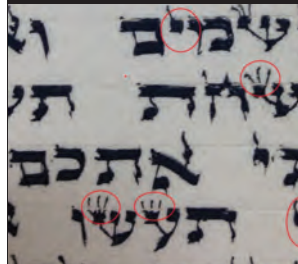
Additionally, the mezuzos that flood the bottom of the market are written very quickly, which makes them more likely to have mistakes, but they are often only hastily checked by magi'im—often untrained magi'im—before they reach the buyer. Trained or not, these magi'im are paid very minimally to sift through and correct the careless mistakes of the sofer. They are, however, not paid to correct the “extra things” (such as missing tagim) they may find. Though they may fix serious issues such as touching or disconnected limbs, they often leave other, less critical issues untouched, leaving the market open for very poor quality, problematic—if not completely non-kosher—mezuzos and tefillin to creep in.

Just like in most other product markets, the cheapest Stam has little to no quality control. However, unlike other purchased items, when it comes to buying mezuzos and tefillin, most people have no idea whether the product they are buying actually “works.” Unlike those who buy expensive mezuzos or tefillin – who generally do some research to ensure that their purchase is one of good quality and often also take care to have the Stam checked periodically to ensure that it is still kosher – those who buy the cheapest products are the most at risk for buying “lemons” and also the least likely to have their Stam checked at any time to ensure their kashrus. (It is important to note, however, that price is not always indicative of quality. A more expensive mezuzah is not guaranteed to always be a better mezuzah, but a less expensive mezuzah is almost certainly likely to be problematic.)

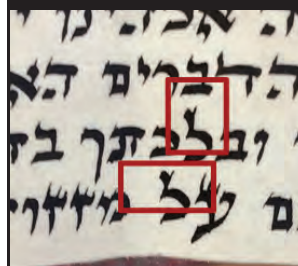
AFFORDABLE?

A SHLIACH ENCOURAGED A MEMBER OF HIS COMMUNITY TO PUT MEZUZOS UP IN HIS HOME. THE MAN AGREED AND THE SHLIACH DIRECTED HIM TO "AFFORDABLE" MEZUZOS. A FEW YEARS LATER, THIS MAN, WHO WAS INVOLVED IN POLITICS, WAS RUNNING FOR A HIGHER POSITION IN THE GOVERNMENT AND HIS CAMPAIGN WASN'T GOING WELL. WHEN HE TURNED TO THE SHLIACH FOR ADVICE, THE SHLIACH SUGGESTED THAT HE CHECK HIS MEZUZOS. THE POLITICIAN DID SO, AND EVERY SINGLE ONE OF HIS MEZUZOS WAS FOUND TO BE POSSUL IN A WAY THAT THEY COULD NEVER HAVE BEEN KOSHER TO BEGIN WITH. AFTER THE MEZUZOS HAD BEEN EXCHANGED FOR KOSHER ONES, THE POLITICIAN'S RATINGS CLIMBED AND HE WAS ELECTED TO THE POSITION HE HAD BEEN RUNNING FOR.

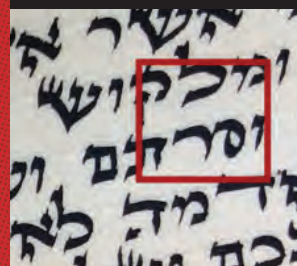
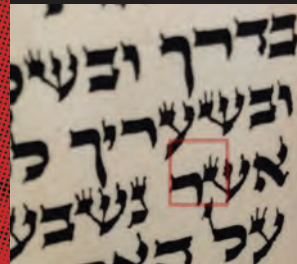
PROBLEMATIC YUDS AND
DISCONNECTED TAGIM



MISSHAPEN LAMEDS



TOUCHING LETTERS



What are we to do?

When we approach a Yid with mezuzos or tefillin, it is our achrayus to make sure we have been fully informed about their source and are certain that they are reliably kosher. Our baalei batim are relying upon us, not the vendors, and we need to come through. And just as we would not blindly rely on others when in search of a brain surgeon, we should not rely blindly on the vendors. Just because a vendor is frum and open for many years doesn't mean that his policies are what they need to be.

- We need to inquire as to the policies of the Stam manufacturer or vendor and find out whether he personally knows who the sofer and magia are and whether they are yirei Shomayim and meticulous